

GJVD010055522025



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| Received on   | 07/08/2025 |
| Registered on | 07/08/2025 |
| Decided on    | 14/08/2025 |
| Duration      | Y. M. D.   |

Exh. No. 4

IN THE COURT OF HON'BLE 12TH ADDL. SESSIONS  
JUDGE, AT VADODARA

**CRI. REVISION APPLICATION NO. 263/ 2025**

Applicant : **Pushpraj Manglubhai Govadiya**  
**aged about Adult,**  
**Resident of : 7, 1-Darbar Gadh, Raypar,**  
**Karla, Botad.**

V E R S U S

Opponent : **THE STATE OF GUJARAT**

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**Appearance :**

Mr. M J Prajapati - Learned Advocate for the applicant

Mr. K. M. Joshi- Learned Addl. P . P. for the Opponent- State

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### J U D G M E N T

- [1] The present criminal revision application is preferred by the revisionist under section 438(1) of The BNSS, 2023 against the order passed by Ld. 11th Addl. JMFC, Vadodara (hereinafter referred to as 'learned Trial Court' ) dated 02/08/2025 in CrMA 5523/2025 for interim custody of muddamal vehicle bearing Registration No. GJ-33-F-9072 which is seized by the police in connection with the offence registered with Harni Police Station, vide C.R.No. III 11196036250265/2025 for the offence punishable under Secs. 108, 65 (E), 98(2) of The Gujarat Prohibition Act.
- [2] The relevant facts as are necessary to adjudicate the present revision application pertaining to the present case are discussed in brief as under :
- [2.1] The applicant herein had preferred an application under Sec. 438 of the BNSS, 2023 before the learned Trial Court for obtaining interim custody of muddamal vehicle bearing Registration No. bearing Registration No. GJ-33-F-9072. After hearing both the sides, the learned Trial Court rejected the application of the present applicant in view of the ratio laid down by Hon'ble High Court of Gujarat in the case of ***Pareshkumar Jaykarbhai Brahmbhatt Vs. State of Gujarat*** holding that, the courts below will have no jurisdiction to order interim release pending the trial of the seized

vehicle in connection with the offence under the Act, 1949, if the quantity of liquor recovered exceeds 10 liters in quantity. So, being aggrieved by the said order, the present applicant has filed this revision application with a prayer to release his vehicle on Bond of appropriate amount.

- [3] Upon presentation of this revision application, notice was issued to the opponent- State. In response thereto, Mr. Joshi- the learned Addl. P.P. appeared and resisted this application.
- [4] Heard the learned Advocate for the parties. Perused the record and the order passed by the learned Trial Court which is under challenge in this revision.
- [5] The learned Advocate appearing on behalf of applicant herein, has mainly submitted in his oral arguments as per pleadings in the application. Moreover he had submitted that, if the vehicle will be kept in police custody for a long time, it will cause damage to the vehicle. The learned Advocate for the applicant has relied upon the principles settled in the case of ***Sunderlal Ambalal Desai Vs. The State of Gujarat*** and submitted that the learned Trial Court has not taken into consideration the principles laid down in the said judgment. Hence, it is submitted that interim custody of the vehicle in question may be handed over to the applicant. It is submitted that, the trial court has wrongly interpreted the provisions of law. The present applicant is entitled to get interim custody of the vehicle in question.

- [6] The learned Addl. P.P. appearing on behalf of Opponent – State has vehemently opposed the application and submitted that, as per the judgment cited by the learned Magistrate Court, the vehicle is involved in transportation of prohibited articles. As per Sec. 98 of Prohibition Act, the learned Trial Court has not power to grant interim custody of the vehicle in such offences. Therefore, no interference is required by this Hon'ble Court in the order passed by the learned Trial Court, and accordingly, he has urged to dismiss this revision application.
7. From the above rival contentions of the parties, following issues / points arise for adjudication of this revision.

### **ISSUES**

1. Whether the impugned order passed by the learned Trial Court rejecting Muddamal Application preferred by the present applicant, for interim custody of muddamal vehicle which is under challenge in this Revision Application, is against the law and perverse, and requires intervention?
  2. What order ?
- (8) My findings on the above issues/points are as under :-
- (1) In Negative.
  - (2) As per final order.

### REASONS

(9) Issue No.1 :-

Before discussing the merits of application, it will be profitable to denote that, the scope of revisional jurisdiction is very limited for interference in the order passed by the courts below. Only if the order of the Trial Court is found to be against the law, and if there is any perversity in the order passed by the Lower Court, then only the Revisional Court is required to interfere in the said order.

(10) In view of the amendment carried out in The Gujarat Prohibition Act, the muddamal seized in the prohibition case will be confiscated. Here in this case, the vehicle in question is involved in the offence under the provisions of The Gujarat Prohibition Act and the quantity of liquor seized is more than 20 liters. As per the judgment in the case of ***Pareshkumar Jaykarbhai Brahmhatt Vs. State of Gujarat***, the Hon'ble High Court of Gujarat has held that, the Courts below will have no jurisdiction to order interim release pending the trial of the seized vehicle in connection with the offence under the Act, 1949 if the quantity of the liquor recovered exceeds 10 liters in quantity." The said limit was revised to 20 lites in the year 2019 by amending Rule 9 of the Gujarat Prohibition Rules, 2012.

(12) Here, in this case, if we look into the order passed by the learned Trial Court, it transpires that, the learned Trial Court has taken into consideration the fact that the vehicle was used for the transportation of prohibited liquor, and the quantity of the seized liquor exceeds 20 liters. The learned Trial Court has also taken into

consideration the ratio established by the Hon'ble High Court in the case of *Pareshkumar Jaykaranbhai Brahmbhatt Vs. State of Gujarat*, 2018 (1) GLR 558 and the ratio led down in the case of *Anilkumar Ramlal @ Ramanlalji Mehta vs. State of Gujarat* 2018 (0) AIJEL HC239613.

- (13) It appears from the impugned order of the learned Trial Court, which is under challenge in this revision, that, the above principles are scrupulously followed. Hence, also taking into consideration the principles settled by the Hon'ble High Court in the above case, the observation made by the learned Trial Court is correct, and has rightly exercised its jurisdiction in the matter, and hence, the same is not required to be interfered with by this court. There is no illegality or perversity in the impugned order passed by the learned Trial Court, and therefore, there is no scope of interference by this court. Hence, Issue / Point No. 1 is answered accordingly.

(14) **Issue No. 2 ::**

In view of what has been discussed herein above, Issue No. 2 is answered accordingly by passing the following final order.

**FINAL ORDER**

- Present Revision Application No. 263/2025 is hereby rejected.

- Order passed by the learned Ld. 11th Addl. JMFC, Vadodara dated 02/08/2025 in CrMA 5523/2025 in connection with the offence registered at Harni Police Station, vide C.R.No. III 11196036250265/2025 for the offence punishable under Section 108, 65 (E), 98(2) of The Gujarat Prohibition Act is hereby confirmed.
- Copy of this judgment is ordered to be send to the Learned Trial Court and also to the concerned Police Station.

Pronounced in open court today on this 14<sup>th</sup> day of August , 2025

14/08/2025  
Vadodara

**( Romit Anilkumar Agrawal)**  
12<sup>th</sup> Add. Sessions Judge,  
Vadodara.  
**UID :- GJ 00933.**